

26STCV06979 26STCV06979

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-09-22

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C413%2C09%2F22%2F2026

Source SHA-256: eab29d12b6f9130cd708f2dfc1007f7edf9862c4dc55ae054ae499b0c7c69cf7

Case Number: 26STCV06979 Hearing Date: September 22, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: September 22, 2026

CASE NUMBER: 26STCV06979

CASE NAME: Ashley Koenig v. DoorDash,
Inc.

MOVING PARTY: Defendant DoorDash, Inc.

OPPOSING PARTY: Plaintiff Ashley Koenig

PROCEEDING: DEMURRER

RULING SUMMARY: Defendant DoorDash, Inc.'s Demurrer is sustained with leave to amend. The Court continues the Case Management Conference to _____, 2026, at 8:30AM, and sets an Order to Show Cause Re: Amended Complaint for the same date and time.

Background

On March

4, 2026, Plaintiff Ashley Koenig ("Plaintiff" or "Koenig") filed her Complaint against Defendant DoorDash, Inc. ("Defendant" or "DoorDash") and Does 1 through 15, alleging nine causes of action for: (1) violation of Labor Code section 1102.5; (2) disability discrimination in violation of Government Code section 12940, et seq.; (3) sex discrimination in violation of the FEHA; (4) sexual harassment

in violation of the FEHA; (5) failure to provide reasonable accommodations in violation of the FEHA; (6) failure to engage in the interactive process in violation of the FEHA; (7) retaliation in violation of the FEHA; (8) failure to prevent discrimination and retaliation in violation of the FEHA; and (9) wrongful termination in violation of public policy. Plaintiff alleges that after she raised concerns about pay, favoritism, and ethics in the workplace and took disability-related leave, Defendant retaliated and discriminated against her—failing to accommodate or engage in the interactive process, permitting sexual harassment/hostile rumors, denying leave needed for surgery, and ultimately terminating her on April 28, 2025.

On April 20, 2026, Defendant filed the instant Demurrer (“Demurrer”). On August 25, 2026, Plaintiff filed her Opposition. On August 31, 2026, Defendant filed its Reply.

LEGAL STANDARD

A demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in the complaint. (Code Civ. Proc., §430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General
demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (Code Civ. Proc., §430.10, subd. (e); *McKenney*, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (Code Civ. Proc., §§ 430.30, 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

For the purpose of testing the sufficiency of the cause of action, the Court admits “all material facts properly pleaded” and “matters which may be judicially

noticed,” but does not consider contentions, deductions, or conclusions of fact or law. (Blank, 39 Cal.3d at 318.) It gives these facts “a reasonable interpretation, reading it as a whole and its parts in their context.” (Ibid.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94.) “If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence.” (Holland v. Morse Diesel Internat., Inc. (2001) 86 Cal.App.4th 1443, 1447.)

REQUEST FOR JUDICIAL NOTICE

Defendant request judicial notice of the following: Order on Motion to Compel Arbitration and Stay Action in Brigitt Goldman v. Nordstrom, Inc., dated February 24, 2026 in the Los Angeles County Superior Court, Case No. 25STCV20165.

Defendant's

Request for Judicial Notice is GRANTED as to the existence and authenticity of the Court record; however, the Court does not take judicial notice of the truth of any factual assertions contained in the Order.

DISCUSSION

Defendant

demurs to the third cause of action for sex discrimination under the FEHA and the fourth cause of action for sexual harassment under the FEHA on the basis that the Complaint fails to state sufficient facts to constitute these causes of action.

A.

Meet and Confer Requirement

Code of Civil Procedure section

430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video

conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., §430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration stating either (1) the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised in the demurrer or (2) the party that filed the pleading failed to respond to the meet and confer request or otherwise failed to meet and confer in good faith. (Code Civ. Proc., §430.41, subd. (a)(3).)

Defendant has not submitted a declaration attesting to its meet and confer efforts; thus, Defendant has not complied with this requirement. However, "[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer." (Code Civ. Proc., §430.41, subd. (a)(4).) Accordingly, the Court proceeds with its adjudication of the Demurrer.

B.
Complaint

According to the Complaint, Plaintiff began her employment with Defendant around September 12, 2022, as a Full Time Support Escalations Representative. (Complaint ¶ 7.) Around June and July 2024, Plaintiff reported concerns about leadership, her supervisor's professionalism, pay discrepancies, favoritism, ethical issues, and other concerns. (Id. ¶¶ 10-13.) Around July 2024, Plaintiff reported that her supervisor engaged in inappropriate behavior, including a personal relationship with a subordinate. (Id. ¶¶ 14-15.)

On August 5, 2024, Defendant's Workplace Investigation Managers ("Managers") interviewed Plaintiff regarding an investigation concerning her supervisor and Plaintiff reported that her supervisor had an inappropriate relationship with a subordinate, among other concerns. (Id. ¶ 17.) On August 29, 2024, Plaintiff was interviewed by the Managers again and during the interview, and learned that they had accessed her personal information, including her dating profile. (Id. ¶ 18.) Around August 29 and September 23, 2024,

“Plaintiff expressed to Defendant that she had serious concerns about why and how the investigators accessed her private, personal information” and also informed Defendant that her co-workers had initiated rumors that she engaged in a romantic relationship with her supervisor.

(Id. ¶ 19.) Plaintiff

requested that Defendant take action against the coworkers initiating such rumors. (Ibid.) Around September 23, 2024, Plaintiff reported to Defendant that she received unsolicited calls and text messages from her colleagues suggesting that she was involved in an inappropriate relationship with her supervisor and reported that these false allegations were damaging to her reputation. (Id. ¶ 20.)

On October 3, 2024, Plaintiff

emailed Defendant’s Senior Workplace Investigator Anthony Martinez (“Martinez”) and “reported that she experienced a hostile work environment, retaliation from her former manager, inappropriate disclosures of her personal information, false rumors about her, reputational damage from these rumors, severe emotional distress, and that she needed a medical leave of absence as a result of the emotional distress.” (Id. ¶ 21.) Around October 17, 2024, Martinez informed Plaintiff that he could not substantiate her claims.

(Id. ¶ 22.)

From February through April 2025,

Defendant’s leave and accommodations personnel repeatedly requested updated medical documentation from Plaintiff and discussed her return-to-work date from disability leave. After Plaintiff reported delays in obtaining documentation and asked for an extension, Defendant terminated her employment on April 28, 2025. (Id., ¶¶ 23-35.)

C.

Third Cause of Action – Sex

Discrimination under the FEHA

The Fair Employment and Housing

Act (FEHA) seeks to eliminate discrimination in the workplace. As such, no person shall be discriminated against in employment opportunities, among other things, on the basis of race,

religion, national origin, mental and physical ability, sex, or gender. (Gov. Code, §§ 12920, 12921(a), 12940(a).) To establish a prima facie case of

discrimination, a plaintiff must show that “(1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing

competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (Guz v. Bechtel National, Inc. (2000) 24 Cal.4th 317, 355.)

The Complaint incorporates all general allegations and adds the following allegations under the sex discrimination cause of action. Plaintiff alleges that “Defendants engaged in unlawful employment practices in violation of the FEHA by discriminating against Plaintiff on account of sex and/or gender. Defendants discriminated against and harassed Plaintiff on account of her gender.” (Complaint ¶ 63.) The discriminatory conduct “included, but was not limited to, the creation of a hostile work environment, making false allegations, and terminating Plaintiff’s employment for making complaints regarding the sexual harassment she endured.” (Ibid.) As a proximate result, Plaintiff has and continues to suffer harm, including “loss of salary and benefits, and the intangible loss of employment related opportunities in her field and damage to her professional reputation,” “emotional distress, humiliation, mental anguish and embarrassment, as well as the manifestation of physical symptoms.” (Id. ¶¶ 64-65.) Plaintiff also alleged that Defendants engaged in oppression, fraud, and/or malice, thus, she is entitled to punitive damages. (Id. ¶ 67.)

Defendant argues that the Complaint does not allege any facts suggesting that Plaintiff’s sex was a motivating factor in the termination. Rather, the allegations mainly concern Plaintiff’s disability and leave of absence, complaints about workplace management, pay discrepancies, and her supervisor’s alleged violations, and a subsequent workplace investigation. Any identified adverse action, including denial of leave and accommodation and termination, is expressly tied to the disability claims. Moreover, Plaintiff’s sex discrimination claim is unsupported because it relies entirely on insufficient harassment allegations, making both claims inadequately pled.

In the Opposition, Plaintiff argues that the Complaint does allege that “Defendants engaged in unlawful employment practices in violation of the FEHA by discriminating against Plaintiff on account of sex and/or gender. Defendants discriminated against and harassed Plaintiff on account of her gender.”

(Complaint ¶ 63.) Taken together, the allegations in the Complaint establish that Defendant created a hostile work environment when it accessed Plaintiff's dating profile and allowed employees to spread rumors about Plaintiff's dating life and sexual orientation and later terminated Plaintiff for reporting this conduct. Plaintiff's allegation that she was terminated after requesting more time to submit documentation does not preclude the possibility that her complaints of sexual harassment also factored into Defendant's decision. Plaintiff's sex discrimination claim is adequately supported because she alleges membership in a protected class as a woman, satisfactory job performance, an adverse termination, and circumstances suggesting discriminatory motive—namely that she was terminated after complaining of gender-based harassment.

In its Reply, Defendant contends that Plaintiff's discrimination theory ultimately relies on the claim that Defendant terminated her for reporting sex-based harassment, which is a retaliation theory rather than sex discrimination. A FEHA discrimination claim requires facts showing sex was a substantial motivating factor in the adverse action, yet the Complaint alleges no comparator, no sex-based statements, no decision-maker with sex-based animus, and attributes all adverse actions to neutral reasons related to leave and documentation. Given that the allegations do not indicate a sex-based motive, the facts support retaliation at most—not sex discrimination.

The Court concludes that the third cause of action fails to state a claim for sex discrimination. The Complaint alleges only generally that Defendant engaged in unlawful employment practices in violation of the FEHA by discriminating against Plaintiff on account of sex and/or gender, that Defendant's discriminatory behavior included creation of a hostile work environment, false rumors, and termination for harassment claims. These allegations are conclusory and do not identify a specific actor who harbored sex-based animus, does not allege that a comparator of a different sex was treated more favorably, does not allege any sex-based statement by any decision-maker, and does not allege that any adverse action was taken in circumstances suggesting sex-based motivation. The pleaded facts attribute the termination to leave documentation and return-to-work issues and do not support an inference that Plaintiff's sex was a substantial motivating factor in the termination or other adverse action.

Thus, the demurrer to the third

cause of action is sustained.

D.

Fourth Cause of Action – Sexual Harassment under the FEHA

Pursuant to the Fair Employment

and Housing Act ("FEHA"), Government Code section 12940, subdivision (j)(4)(C),

"'harassment' because of sex includes sexual harassment, gender harassment, and harassment based on pregnancy, childbirth, or related medical condition.

Sexually harassing conduct need not be motivated by sexual desire." "FEHA's prohibition against sexual harassment includes protection from a broad range of conduct, ranging from expressly or impliedly conditioning employment benefits on submission to or tolerance of unwelcome sexual advances, to the creation of a work environment that is hostile or abusive on the basis of sex." (Lewis v. City of Benicia (2014) 224 Cal.App.4th 1519, 1524 [internal quotations omitted].)

A claim for harassment under FEHA

requires allegations that "(1) plaintiff belongs to a protected group; (2) plaintiff was subject to unwelcome harassment; (3) the harassment complained of was based on plaintiff's membership in the protected group; (4) the harassment complained of was sufficiently pervasive so as to alter the conditions of employment and create an abusive working environment; and (5) respondeat superior." (Guthrey v. State of California (1998) 63 Cal.App.4th 1108, 1122.) "A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment." (Gov. Code, §12923, subd. (b).)

"[T]he question of whether or not

there is a hostile work environment must be determined from the totality of the circumstances. In making this

determination the trier of fact should consider, '(1) the nature of the

unwelcome sexual acts or words (with physical touching generally considered more offensive than mere words); (2) the frequency of the offensive acts or encounters; (3) the total number of days over which all the offensive conduct

occurred; and (4) the context in which the sexually harassing conduct occurred.'" (Sheffield v. Los Angeles County (2003)

109 Cal.App.4th 153.)

In *Roby v. McKesson Corp.*, the Court noted that there is a distinction between discrimination and harassment in regard to the application of FEHA, “discrimination refers to bias in the exercise of official actions on behalf of the employer, and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace.” (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 707.) Thus, harassment focuses on “conduct outside the scope of necessary job performance, conduct presumably engaged in for personal gratification, because of meanness or bigotry, or for other personal motives... [Citation.]” (*Ibid.*) The Court noted that “harassment is generally concerned with the message conveyed to an employee, and therefore with the social environment of the workplace, whereas discrimination is concerned with explicit changes in the terms or conditions of employment. (*Ibid.*) However, “in some cases the hostile message that constitutes the harassment is conveyed through official employment actions, and therefore evidence that would otherwise be associated with a discrimination claim can form the basis of a harassment claim.” (*Ibid.*; *Miller v. Department of Corrections* (2005) 36 Cal.4th 446, 468.) Thus, “in analyzing the sufficiency of evidence in support of a harassment claim, there is no basis for excluding evidence of biased personnel management actions so long as that evidence is relevant to prove the communication of a hostile message.” (*Ibid.*)

The Complaint incorporates all general allegations and adds the following allegations under the sexual harassment cause of action. Plaintiff alleges that “Defendants harassed Plaintiff on account of her gender” and the harassing conduct, which was “unwanted, serious, and pervasive” included “the creation of a hostile work environment.” (Complaint ¶¶ 70-72.) As a proximate result, Plaintiff has and continues to suffer harm, including “loss of wages and benefits, and the intangible loss of employment related opportunities in Plaintiff’s field and damage to Plaintiff’s professional reputation,” “emotional distress, humiliation, mental anguish, and embarrassment, as well as the manifestation of physical symptoms.” (*Id.* ¶¶ 73-74.) Plaintiff also alleged that Defendants engaged in oppression, fraud, and/or malice, thus, she is entitled to punitive damages. (*Id.* ¶ 75.)

Defendant presents the following arguments in its Demurrer. First, Plaintiff fails to allege severe or pervasive conduct as all of the allegations

are conclusory and do not contain specific information about who made the alleged comments about Plaintiff, the frequency and duration of the conduct, and how it implicates Plaintiff's sex. Second, Plaintiff fails to allege that the subject conduct was because of her sex.

Third, Plaintiff's allegations "describe the byproduct of a workplace investigation and ordinary interpersonal workplace dynamics" which, at most constitute employment management actions, not a harassment claim.

In her Opposition, Plaintiff argues that the allegations, taken together, sufficiently plead a cause of action for harassment based on sex/gender.

The Complaint alleges the nature of the unwelcome conduct, the frequency, the duration (occurring within a period of three months between August and October 2024), and the context.

Thus, the allegations establish that the conduct was severe and pervasive. Furthermore, the harassing conduct involved Plaintiff's dating life and dating profile, spreading false rumors about an inappropriate, romantic relationship with her supervisor of the same sex. These allegations do not constitute a necessary workplace function and qualify as harassment. Plaintiff also argues that severity is a factual question generally inappropriate for resolution at the pleading stage.

In its

Reply, Defendant argues that Plaintiff's opposition relies on a "based on sex" theory which is not presented anywhere in the Complaint. There are no allegations that the rumors concerned same-sex dating or comments about Plaintiff's sexual orientation; instead, the Complaint describes rumors of a romantic relationship with her supervisor and an inappropriate relationship with another coworker, with no mention of sexual orientation. Defendant adds that the harassment claim also fails because the conduct, including the rumors, calls, and texts, cannot be imputed to DoorDash. Plaintiff's own allegations show DoorDash followed statutory requirements: she reported the rumors, DoorDash investigated them, and an investigator concluded the claims could not be substantiated. Plaintiff's disagreement with the outcome does not make coworkers' rumors attributable to DoorDash; instead, it demonstrates that DoorDash took prompt, appropriate action, which precludes employer liability.

The

Court concludes that Plaintiff has adequately alleged conduct that could be found to be sufficiently severe or pervasive.

In the Complaint, Plaintiff alleges that: (1) during a workplace investigation, Defendant accessed her personal dating app profile without her consent; (2) co-workers initiated and spread rumors that she engaged in a romantic relationship with her supervisor; (3) she received unsolicited calls and text messages from colleagues suggesting that she was in an inappropriate relationship with her supervisor; and (4) she reported a hostile work environment, reputational damage, and severe emotional distress. These allegations span approximately three months, from August through October 2024.

Even “A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff’s work performance or created an intimidating, hostile, or offensive working environment.” (Gov. Code, §12923, subd.

(b).)

However,

when harassment is alleged against non-supervisory co-workers, an employer is liable under the FEHA only if the employer knew or should have known about the misconduct and failed to take immediate and appropriate corrective action. (Gov. Code., §12940, subd. (j)(1).) Here, Plaintiff alleges that she reported the rumors and Defendant investigated her reports, but could not substantiate her claims. This constitutes immediate and appropriate corrective action that forecloses employer liability for co-worker conduct.

The

Court finds that Plaintiff fails to allege facts sufficient to establish that the alleged co-worker conduct is imputable to Defendant. The demurrer to the fourth cause of action is sustained.

E.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy, (1976) 18 Cal.3d 335, 349.)

The burden is on the Plaintiff to show the Court that a pleading can be amended successfully. (Lewis v. Youtube, LLC, (2015) 244 Cal.App.4th 118, 226.)

The Court finds that there is a reasonable possibility that amendment will cure the deficiencies noted in the Complaint. The demurrer to the third and fourth causes of action is sustained with leave to amend.

Conclusion

Defendant

DoorDash Inc.'s Demurrer to the third and fourth causes of action is SUSTAINED with leave to amend. Plaintiff must file and serve an amended complaint within 20 days of the Court's order. The Court continues the Case Management Conference to _____, 2026, at 8:30AM, and sets an Order to Show Cause Re: Amended Complaint for the same date and time.

Date: September 22, 2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court